

1. INDEPENDENT CONTRACTOR DRIVER AGREEMENT

This Independent Contractor Driver Agreement ("Agreement") is entered into as of **[Date]**, by and between: **[Courier Company Name]**, a [State] limited liability company with its principal place of business at [Company Address] ("Company"), and **[Driver Name]**, an independent contractor with an address at [Driver Address] ("Contractor"). Together, the Company and Contractor may be referred to as the "Parties."

2. Independent Contractor Relationship

2.1 Contractor is engaged as an **independent contractor** and not as an employee, partner, joint venturer, or agent of the Company.

2.2 Contractor shall have no authority to bind or obligate the Company.

2.3 Contractor is solely responsible for all taxes, insurance, licenses, permits, and expenses related to providing delivery services.

3. Services Provided

3.1 Contractor agrees to provide **courier and delivery services** ("Services") as requested by the Company, including but not limited to:

- Pickup and delivery of packages, parcels, and freight.
- Completion of assigned routes in a safe and timely manner.
- Compliance with customer instructions and Company standards.

3.2 Contractor will determine the **method, details, and means** of performing the Services, provided that all deliveries are completed in accordance with agreed timelines and applicable laws.

4. Payment Method.

The Payment Amount and Payment Method collectively shall be referred to as "Compensation"

5. Compensation

5.1 Independent Contractor will be compensated subject to submission of all required delivery documentation, as follows:

- The Client agrees to pay the Delivery Driver the following compensation for the Service performed under this Agreement: (check one)
- ☐ - \$_____ / Hour
- ☐ - \$_____ / per Job. A "Job" is _____.
- Base Rate: **[\$[Amount]]** (includes first [X] miles).
- Mileage Rate: **[\$[Amount] per mile]** thereafter.
- Additional Fees: [Waiting Time, Lift Gate, Fuel Surcharge, etc. as applicable].

5.2 The Client/Dispatcher shall pay Independent Contractor the Payment Amount: (check one)

☐ - When Invoiced

☐ - Daily

☐ - Weekly

☐ - Bi-Weekly

☐ - Monthly

☐ - Other: _____.

6. VI. Retainer.

6.1 The Client is: (check one)

☐ - To pay a retainer in the amount of \$_____ to the Delivery Driver as an advance on future Services to be provided ("Retainer"). (check one)

☐ - Retainer is Refundable.

☐ - Retainer is Non-Refundable.

☐ - Not required to pay a retainer before the Delivery Driver is able to commence work.

6.2 Contractor is not entitled to overtime pay, benefits, or reimbursement of expenses unless otherwise agreed in writing.

7. Equipment & Expenses

7.1 Contractor shall provide and maintain, at Contractor's sole expense, a safe, legally compliant, and properly insured vehicle suitable for the Services.

7.2 Contractor shall be responsible for fuel, maintenance, tolls, mobile devices, insurance, and any other costs incurred in performing Services.

8. Insurance & Licenses

8.1 Contractor shall maintain all legally required licenses, permits, and certifications (including driver's license, vehicle registration, DOT/TWIC cards, and medical/industry-specific certifications as required).

8.2 Contractor shall maintain commercial auto liability insurance, cargo insurance, and any other coverage required by law or by the Company. Proof of insurance must be provided upon request.

9. Term & Termination

9.1 This Agreement shall begin on **[Start Date]** and continue until terminated by either Party.

9.2 Either Party may terminate this Agreement at any time with **[number]** days' written notice.

9.3 The Company may terminate immediately for cause, including but not limited to: failure to perform Services, violation of law, breach of this Agreement, unsafe driving, or misconduct.

10. Confidentiality & Non-Solicitation

10.1 Contractor agrees not to disclose or use any confidential or proprietary information of the Company or its clients, including but not limited to customer lists, rates, business methods, and trade secrets.

10.2 Contractor agrees that during the term of this Agreement and for **[12–24 months]** after termination, Contractor shall not directly or indirectly solicit, divert, or service any customers or clients introduced through the Company without prior written consent.

11. Compliance with Law

Contractor shall comply with all federal, state, and local laws, including but not limited to traffic regulations, DOT rules, safety requirements, and applicable industry compliance standards (e.g., HIPAA for medical deliveries).

12. Indemnification

Contractor agrees to indemnify, defend, and hold harmless the Company, its affiliates, employees, and clients from any claims, damages, losses, liabilities, costs, or expenses arising from Contractor's Services, negligence, misconduct, or violation of law.

13. Entire Agreement

This Agreement contains the entire agreement between the Parties and supersedes any prior agreements or understandings. Any modifications must be in writing and signed by both Parties.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the date first above written.

[Courier Company Name]

By: _____

Name: _____

Title: _____

Date: _____

14. Independent Contractor

By: _____

Name: _____

Date: _____